1.3 The Supreme Court

After winning the presidency, Thomas Jefferson might have thought that he and his opponents would be able to put aside their differences and work together. He didn't know John Adams would take one more parting shot.

MAIN IDEA The introduction of judicial review brought greater power to the Supreme Court and greater balance among the three branches of government.

MARSHALL'S COURT

John Adams and the Federalists lost the presidential and congressional elections in 1800, but they made the most of their remaining time in office. Just before the Democratic-Republicans took over, Congress passed the **Judiciary Act of 1801**. The act reduced the number of justices on the Supreme Court from six to five, which would deny Jefferson the chance to appoint a new justice when the next justice died or resigned. This power is important because the position of a Supreme Court justice is a lifetime appointment. The act also allowed Adams to appoint many new, Federalist lower-court judges before he stepped down. Adams worked late into the night of his last day signing commissions for these judges, who became known as "midnight judges."

Adams also chose a new Chief Justice of the United States, **John Marshall**—a Federalist. One of Marshall's earliest and most important cases was *Marbury* v. *Madison*. The case pitted one of Adams's midnight judges, William Marbury, against Jefferson's secretary of state, James Madison.

MARBURY V. *MADISON*

The case arose because Adams had signed Marbury's commission but left office before it was delivered. Adams believed that his signature alone made the commission valid. Jefferson disagreed and ordered Madison to block the commission. Marbury sued, saying that the Judiciary Act of 1789 required the Supreme Court to force Madison to give him his commission.

It seemed like a straightforward case. The Court had to decide three questions. First, was Marbury entitled to have the commission delivered to him? The Court said yes. Second, was it within the law to have the courts issue a **writ**, or legal document, commanding Madison to deliver the commission? Again, the Court agreed. Third, was it legal for the Supreme Court to issue this writ? Here, the Court surprised everyone. Marshall answered with a resounding "No!" and decided against Marbury.

Even though the Judiciary Act of 1789 stated that the Supreme Court could issue such writs, Marshall argued that the U.S. Constitution did not give such power to the Court. The Court declared that part of the act to be **unconstitutional**, or against the Constitution. No law had ever been declared unconstitutional before. With his ruling, Marshall established **judicial review**, the power to invalidate any law the Court deems unconstitutional. *Marbury* v. *Madison* established the judiciary's role in the protection of the freedoms and individual rights detailed in the Bill of Rights. The case also strengthened the balance among the three branches of government, promoting the principle of checks and balances. Jefferson, however, would soon test the limits of the power of the branches and the Constitution.

HISTORICAL THINKING

1. **READING CHECK** How was Marbury appointed as a judge?
2. **ANALYZE CAUSE AND EFFECT** What unintended consequence did John Adams's plan to appoint midnight judges bring about?
3. **EVALUATE** What was surprising about Marshall's decision that the Supreme Court did not have the power to issue Marbury's writ?

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AMERICAN PLACES

The Supreme Court, Washington, D.C.

Surprisingly, the Supreme Court was not provided with its own building until 1935. Until that time, members of the Court met in several places, including the Capitol Building. Finally, Chief Justice William Howard Taft—who had also served as president—persuaded Congress to construct a permanent home for the Court. When work got underway, the architect built it in the style of an ancient Roman temple, similar to the style of nearby congressional buildings. The result was as Taft wished: "a building of dignity and importance suitable for use as the home of the Supreme Court of the United States."



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